

that this decision apportioning costs had become final. Since, in its appeal against the fixing of costs, the appellant had in fact objected only to their apportionment, the appeal had to be dismissed. It did not follow from R. 97(1) EPC that a decision apportioning costs was necessarily open to challenge together with the decision fixing them.

4. Procedural aspects

4.1. Filing a request for apportionment of costs

The practice before the boards of appeal is that all requests by parties, including any requests as to costs, should be made before any decision is announced in oral proceedings, as the decision on apportionment is part of the final decision. See T. 1556/14 of 15 October 2020, where the board held that R. 88(1) EPC implied that the request for apportionment was submitted before the decision of the opposition division was taken. In T. 212/88 (OJ 1992, 28), though, **by way of exception** the request for apportionment was also considered later, because at that time this practice had not been published and the parties were therefore unaware of it.

Where a request for apportionment cannot be submitted before termination of the proceedings, for example when the only appeal is withdrawn and the timing of that withdrawal or other related circumstances are the alleged grounds for requesting apportionment of costs, the request must be accepted as being admissible despite being submitted after termination of the proceedings (T. 1556/14). However, in the case in hand the board was not convinced that the appellant had been unable to file a request for apportionment of costs prior to the termination of the proceedings.

The decision on costs may also be taken in isolation if the opposition and the appeal have been withdrawn (T. 85/84, T. 765/89).

There is no basis for deciding on a different apportionment of costs if the party which would benefit from the decision did not request apportionment and even made it known that it would not enforce any such decision (T. 408/91, T. 125/93).

A request for apportionment of costs submitted by the respondent merely as a party to the appeal proceedings as of right (Art. 107, second sentence, EPC 1973) must be rejected as inadmissible as it would otherwise contravene the principle of equal treatment (T. 753/92, T. 514/01, T. 1237/05).

In several decisions, the boards of appeal have stressed the importance of submitting evidence to support a request for a different apportionment of costs (e.g. T. 49/86, T. 193/87, T. 212/88, OJ 1992, 28; T. 404/89, T. 523/89, T. 705/90, T. 776/90, T. 306/93). Thus in T. 896/92 the request for a different apportionment of costs was rejected for lack of substantiation and because of the absence of obvious reasons. In T. 193/87 (OJ 1993, 207) the board likewise refused to apportion costs because the respondents had provided no evidence and it was unable to see any reasons of equity that might have justified such an apportionment.

4.2. Competence issues

In T 765/89 it was stressed that the board was still responsible for deciding on the request that costs be awarded against the appellants even if the latter had withdrawn their appeal. Where an opponent (respondent) withdraws his opposition during appeal proceedings, he ceases to be a party to the appeal proceedings as far as the substantive issues are concerned but retains his party status in so far as the question of apportionment of costs is still at issue (T 789/89, OJ 1994, 482).

According to the board in T 1059/98, apportionment of the costs of proceedings before the opposition division could not be requested for the first time on appeal, because the boards of appeal could only review decisions taken by a department of first instance and so had no competence to decide on such requests (see also T 1273/11). As a matter of principle costs are not apportioned in transfer proceedings (J 38/92, OJ 1995, 8).

4.3. Appeal solely against the decision on apportionment of costs inadmissible

R. 97(1) EPC (Art. 106(4) EPC 1973) states that the apportionment of costs of opposition proceedings cannot be the sole subject of an appeal. As a rule, therefore, an appeal relating to apportionment of costs must be regarded as inadmissible if the appeal relating to the revocation of a patent is rejected as inadmissible for lack of merit and there is no other admissible request. However, if the impugned decision did not take into account the withdrawal of the request for oral proceedings and is thus based on a substantial procedural violation, the part of the impugned decision relating to apportionment of costs must be set aside (see e.g. T 154/90, OJ 1993, 505).

In T 1237/05 the board found that the opponent, not being adversely affected by the patent's revocation, was not entitled to appeal solely against the apportionment of costs. The opponent's appeal, in view of Art. 106(4) EPC 1973, was inadmissible on that count alone. The mere fact that an appeal, in this case the proprietor's, was admissible did not in itself make the opponent's appeal admissible (the opponent in any case not being adversely affected by the first-instance decision on the merits) because it related only to cost apportionment. A distinction had to be drawn between appeal proceedings (initiated by at least one admissible appeal) and an appeal lodged by a party; the wording of Art. 106(4) EPC 1973 clearly referred to an appeal lodged by one of the parties to the proceedings, regardless of the existence of other appeals lodged by the other parties.

In T 753/92 respondent I was adversely affected by the decision under appeal only in so far as their request for apportionment of costs was rejected. If respondent I had lodged an appeal against this decision, the appeal, with the apportionment of costs as its sole subject, would have been inadmissible under Art. 106(4) EPC 1973. The fact that respondent I submitted the request for apportionment of costs merely as a party to the appeal proceedings as of right (Art. 107 EPC) could not render such a request admissible without contravening the principle of equal treatment.

In T 668/99 the board took the view that, since no appeal had been lodged against the opposition division's decision on costs, that decision had become final upon expiry of the

time limit for filing a notice of appeal (see also **T.161/17**). It found that the decision on costs mentioned in the request had not been submitted with the appeal, nor was there any indication of an implicit challenge to that decision. The board held that, unlike general procedural requirements, which – as had been consistently held – had to be reviewed at all times, including in the appeal procedure, the issuance of a decision on costs by the EPO did not necessarily mean that a decision had also to be reviewed by the EPO. The review of a decision at a higher level of jurisdiction required an appeal by one of the parties.

In **T.420/03** the question arose whether the "additional decision" concerning the apportionment of costs fell within the scope of appeal. While the notice of appeal remained completely silent as regards the decision on the apportionment of costs, the request for cancellation of this decision was contained in the statement setting out the grounds of appeal. In the case before it, the board found that the notice of appeal did not contain any explicit statement concerning the apportionment of costs, and there was no other statement in the notice of appeal which could be interpreted – at least indirectly – that this was also the subject of the appeal.

S. Notifications

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Notifications are governed in detail by [Art. 119 EPC](#) and [R. 125 to 130 EPC](#). Notification may be made by post, delivery by hand, public notice or, as provided for in [R. 127 EPC](#), by means of electronic communication. A set of amendments to the Implementing Regulations concerning notification and the use of electronic tools in proceedings before the EPO entered into force on 1 April 2015 (see Administrative Council decision CA/D 6/14, [OJ 2015, A17](#)). In particular amendments to [125](#), [126](#), [127](#) and [129 EPC](#) were adopted, and these are explained in the sections on the individual forms of notification below. Amended [R. 125\(1\) EPC](#) clarifies what documents must be notified and serves merely as an explicit legal basis for the EPO's existing practice of not formally notifying notices and communications from which no time limits are reckoned (see notice of the EPO dated 30 March 2015, [OJ 2015, A36](#)). [R. 126\(1\) EPC](#) was further amended by Administrative Council decision CA/D 2/19 ([OJ 2019, A31](#)) to remove the requirement to notify with advice of delivery.

With regard to notifications by electronic communication, a pilot project was launched by the decision of the President of the EPO dated 4 July 2012 ([OJ 2012, 486](#)), with the aim of progressively introducing new technical means for the electronic communication of patent applications, other documents, notifications and further information. The pilot project was continued by the decision of the President of the EPO dated 11 March 2015 ([OJ 2015, A28](#)). In accordance with Art. 12 of this decision of the President of the EPO, with decision of the Vice-President Legal and International Affairs (Directorate-General 5) of the EPO dated 23 July 2020 ([OJ 2020, A89](#)) the EPO launched a pilot project permitting examining divisions to use email to notify important information about oral proceedings. This decision entered into force on 1 September 2020, and the pilot project ran until 31 August 2021.

From 1 June 2021, the boards of appeal began to notify documents in appeal proceedings electronically via the EPO Mailbox (notice of the President of the Boards of Appeal dated 13 April 2021 concerning the extension of electronic notification via the EPO Mailbox to appeal proceedings; [OJ 2021, A37](#)).

1. Forms of notification

1.1. Notification by postal services

In R. 126 EPC, and also in R. 125(2) and 133(1) EPC, references to "post" have been replaced by "postal services" and "postal service providers" in 2015. This gives the Office the freedom to choose any postal service provider it regards as suited to serving notification.

In view of the low return rate of advices of delivery and the notable administrative burden associated with their processing, R. 126(1) EPC was amended by Administrative Council decision CA/D 2/19 (OJ 2019, A31) to remove the requirement to notify by registered mail with advice of delivery. Decisions incurring a period for appeal or a petition for review, summons and any notice or other communication triggering a time limit must instead be notified by registered letter, if not notified electronically. Amended R. 126(1) EPC came into force on 1 November 2019.

In T 1693/13, the EPO had notified the contested decision using courier service UPS before R. 126 EPC as amended had entered into force. The board held that the appellant had been entitled in the circumstances to assume that the UPS courier service was treated as "post" within the meaning of R. 126 EPC as then still in force and that it made no difference to how the appeal period was determined under that provision whether a decision had been sent by post or by UPS. In contrast, in G 1/14 (OJ 2016, A95) the Enlarged Board took the view that old R. 126(1) EPC related solely to notification by post using a "registered letter with advice of delivery" and not to any other kind (by UPS in the case in hand). See also chapter V.B.2.3.3.

In J 9/96 the Legal Board of Appeal held that notification of a communication posted as an ordinary letter in accordance with R. 78(2) EPC 1973 (no longer applicable since 1.1.1999) was deemed to have been made when despatch had taken place. However, if the communication did not reach the addressee and was not returned to the EPO, the legal fiction of deemed notification could not be applied, unless the EPO could establish that it had duly despatched the communication (see also J 27/97 and J 32/97). On the question of apportioning the burden of proof and spheres of risk in connection with notification irregularities, see in this chapter III.S.4.

In T 1596/14 the board noted in obiter dictum that there was no evidence or indication that the alleged unequal treatment of the parties induced by different dates of notification of the same decision had been detrimental to any party's interests. There did not appear to be any consequences for the admissibility of the appeals or for the due course of the ensuing appeal proceedings. The board noted that there was no specific sanction or remedy foreseen in the EPC for this situation and it seemed to the board that it was difficult to assume that appellant I's suggestion to re-send the decision with a new common notification date would be a remedy, since the parties in the case in hand were already aware of each other's arguments.